

Los Angeles Regional Water Quality Control Board

April 29, 2025

Ken Solomon, President
Top O'Topanga Community Association
3360 North Topanga Canyon Boulevard
Topanga, CA 90290

Via Email Only

GENERAL WASTE DISCHARGE REQUIREMENTS FOR THE TOP O'TOPANGA COMMUNITY ASSOCIATION WASTEWATER TREATMENT SYSTEM AT 3360 NORTH TOPANGA CANYON BOULEVARD, TOPANGA, CALIFORNIA 90290 (FILE NO. 61-149, ORDER NO. R4-2019-0024, SERIES NO. 066, CI-3185, GLOBAL ID WDR100000744)

Dear Ken Solomon:

The Los Angeles Regional Water Quality Control Board (Los Angeles Water Board) is the public agency responsible for protecting the quality of ground and surface water for all beneficial uses within most areas of Los Angeles and Ventura Counties. The subject property falls within the jurisdiction of the Los Angeles Water Board.

On May 12, 1997, the Top O'Topanga Community Association (Association) Wastewater Treatment System (Facility), owned by the Association, was authorized to discharge recycled water under Water Reclamation Requirements (WRRs) Order No. 97-071 adopted by the Los Angeles Regional Water Quality Control Board (Los Angeles Water Board). The Facility treats domestic wastewater generated from 221 single-family residential units at 3360 North Topanga Canyon Boulevard, Topanga, California 90290 (Figure 1).

On June 15, 2021, the Los Angeles Water Board received an updated Form 200/Report of Waste Discharge (ROWD) submitted by the Association to renew the wastewater discharge permit to comply with the State Water Resources Control Board's (State Water Board's) *Policy for Water Quality Control for Recycled Water* (Recycled Water Policy).

The Recycled Water Policy requires all dischargers to submit their Title 22 engineering reports for recycled water applications to the State Water Board Division of Drinking Water (DDW) and the Los Angeles Water Board for approval to comply with all applicable regulations.

On October 3, 2022, the Discharger submitted a Title 22 engineering report for the Facility to DDW and Los Angeles Water Board for review and approval. Subsequently, on July 11, 2024, the Discharger submitted a revised Title 22 engineering report in response to

the August 2, 2023, DDW's comments. On November 19, 2024, DDW issued a conditional acceptance letter to approve the revised Title 22 Engineering Report.

The Facility is designed to treat up to 40,000 gallons per day (gpd) of domestic wastewater with a package treatment system consisting of a comminutor/bar screen, an anoxic basin, dual aerobic basins, dual clarifiers, and sodium hypochlorite disinfection contact chamber, and irrigation water storage pond, as shown in Figure 2. The disinfected water meeting Title 22 secondary-23 recycled water criteria is conveyed to a bentonite-lined 1.5-million-gallon recycled water storage pond and distributed to hillside slope irrigation areas around the perimeter of the property (Figure 3). Disinfected secondary-23 recycled water requires a 7-day median concentration of total coliform less than 23 most probable number per 100 milliliters (MPN/100 mL) and must not exceed 240 MPN/100 mL in more than one sample in any 30-day period.

SUMMARY OF LOS ANGELES WATER BOARD REVIEW AND REQUIREMENTS

Los Angeles Water Board staff has reviewed the information provided and determined that the discharge meets the conditions specified in Order No. R4-2019-0024, *General Waste Discharge Requirements for Advanced Onsite Wastewater Treatment Systems*, adopted by the Los Angeles Water Board on February 14, 2019.

Enclosed are your General Waste Discharge Requirements (WDRs), consisting of Order No. R4-2019-0024, Monitoring and Reporting Program (MRP) No. CI-3185, and Standard Provisions Applicable to WDRs. Based on the location and anticipated performance of the Facility, the requirements specified in Order No. R4-2019-0024, including effluent quality limitations specified in Section III and numeric limitations in Table 2, are applicable to your discharge. At this time, the groundwater limitations specified in Section IV.B (Table 4) are not applicable to your discharge, and therefore, groundwater monitoring is not required.

The maximum effluent discharge flowrate from the Facility shall not exceed its design treatment capacity of 40,000 gpd. Treated wastewater will be discharged to groundwater in the Malibu Valley Groundwater Basin-Topanga Canyon Area Subbasin (Subbasin). Consistent with Table 2 of the Order, the effluent limitation for total dissolved solids is 2,000 milligrams per liter (mg/L), for sulfate is 500 mg/L, for chloride is 500 mg/L, for boron is 2.0 mg/L, and for nitrogen is 10 mg/L as nitrate-nitrogen plus nitrite-nitrogen based on the groundwater quality objectives for the Subbasin.

The Facility's biological wastewater treatment system is classified as a secondary treatment system. Accordingly, total coliform levels in the effluent shall not exceed 23 MPN/100 mL as a weekly average and 240 MPN/100 mL as a monthly average. Additionally, since chlorination is the primary disinfection process, effluent limitations for total residual chlorine and chlorination by-product limitations specified in Section III.C.3 are applicable.

Additionally, you are required to comply with all requirements and conditions prescribed in the DDW's conditional acceptance letter.

If any modifications affecting the operation of the wastewater treatment system are proposed, revised engineering plans reflecting those changes must be submitted to the Los Angeles Water Board at least 30 days prior to implementation. Written approval from the Water Board is required before any changes to the Facility may be made.

MRP No. CI-3185 requires implementation of the monitoring program beginning on the effective date of permit coverage. When submitting monitoring or technical reports to the Los Angeles Water Board in accordance with MRP requirements, each report must be submitted as a standalone document. Monitoring reports should not be combined with other types of reports.

The Discharger must also comply with the Electronic Submittal of Information (ESI) requirements by submitting all required documents, including monthly water usage data and monitoring reports in PDF format, to the State Water Resources Control Board's GeoTracker database under Global ID WDR100000744. For additional guidance, please refer to [Paperless Office Notice for GeoTracker Users](#), dated December 12, 2011.

If you sell or transfer this property, you must disclose the terms of the WDRs to the new property owner and submit the enclosed Board Order Transfer Request Form, signed by the new owner, along with your written request for termination of enrollment under the General WDRs.

Additionally, you must discontinue use of the AOWTS and connect to a public sewer system within 12 months of its availability within 200 feet of the property.

To avoid incurring future annual fees, please submit a separate written request for termination of your enrollment under the General WDRs if your Facility is connected to a public sewer system, and the permit is no longer needed. Please note that the annual fee covers the fiscal year billing period from July 1 to June 30 of the following year. If your termination request is submitting after the start of the new fiscal year on July 1, you will be required to pay the full annual fee.

If you have any additional questions, please contact Water Resource Control Engineer Woonhoe Kim at woonhoe.kim@waterboards.ca.gov or Section Manager James Kang at jim.kang@waterboards.ca.gov.

Sincerely,

for Susana Arredondo
Executive Officer

Enclosures:

1. General WDRs [Order No. R4-2019-0024](#)
2. Monitoring and Reporting Program No. CI-3185
3. [Standard Provisions Applicable to WDRs](#)

4. [Board Order Transfer Request Form](#)
5. [DDW Conditional Acceptance Letter](#)

cc (via email): Rick Vardel, IPC, Inc.
Genichi Amah, DDW
Christopher Barber, DDW
Shikari Nakagawa-Ota, Los Angeles County Department of Public Health

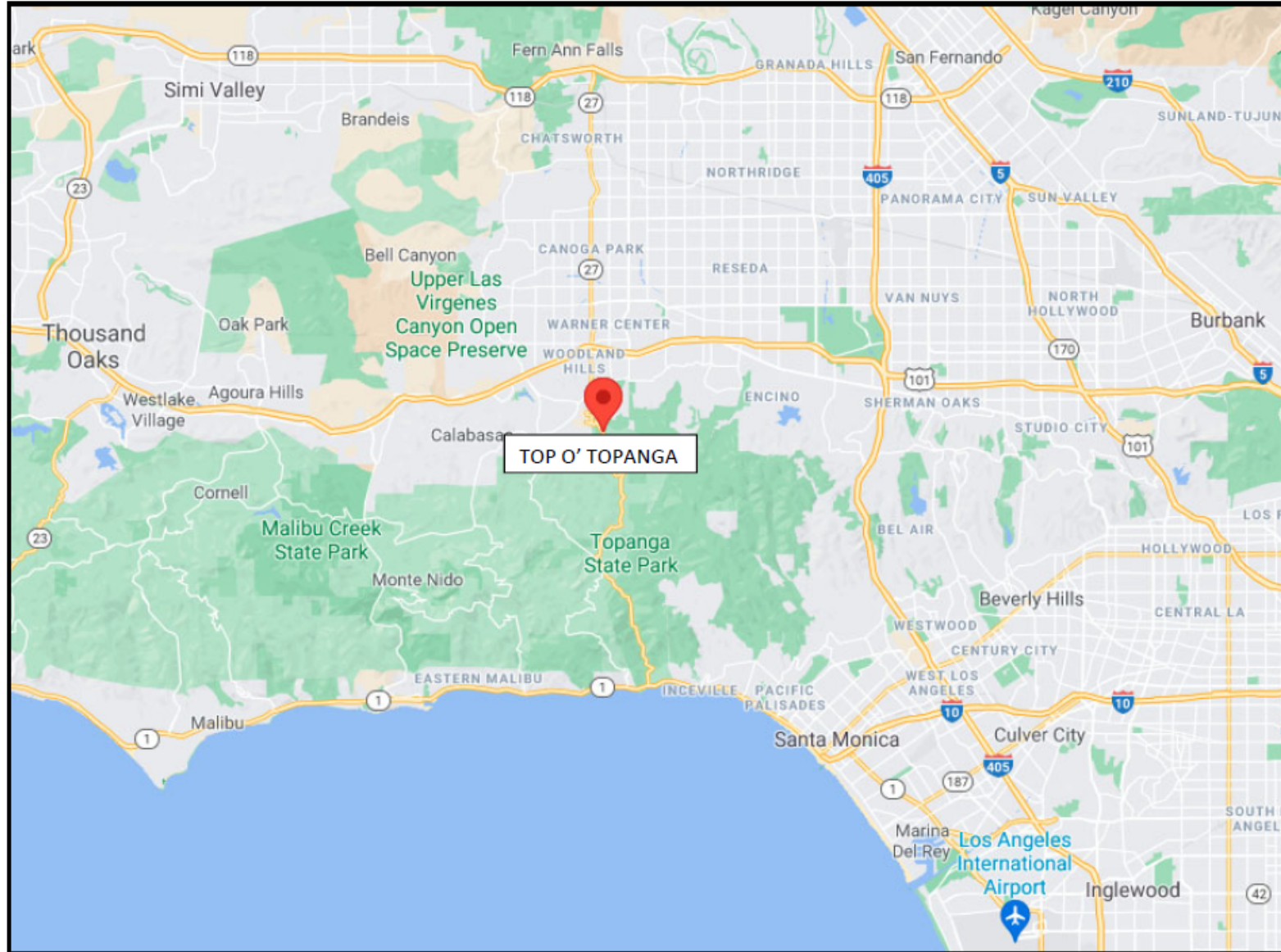


Figure 1. Vicinity of the Top O'Topanga Community Association at 3360 North Topanga Canyon Boulevard in Topanga

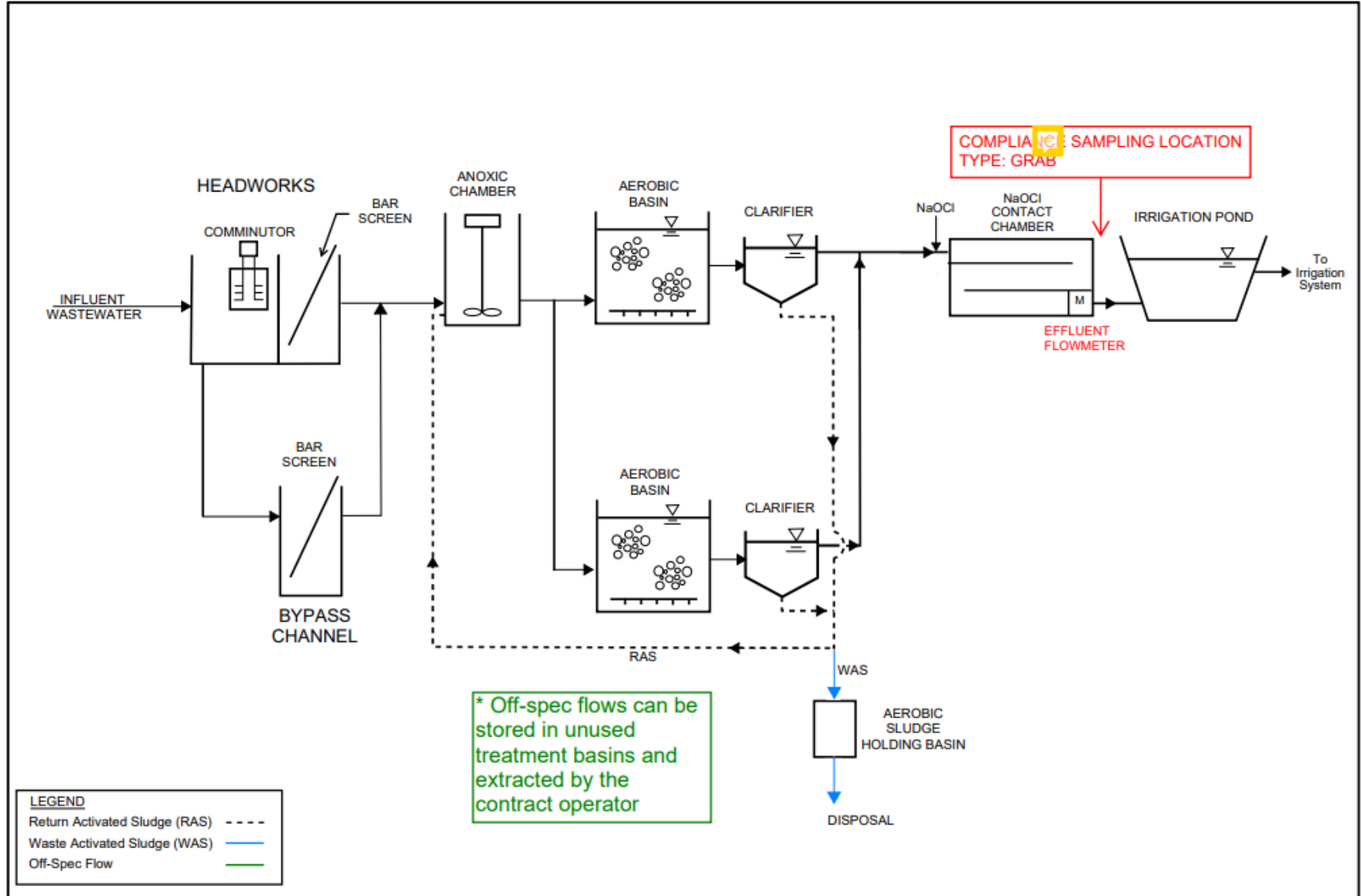


Figure 2. Top O'Topanga Wastewater Treatment System Process Flow Diagram



Figure 3. Recycled Water Irrigation Areas

**STANDARD PROVISIONS
APPLICABLE TO WASTE DISCHARGE REQUIREMENTS**

1. Duty to Comply

The discharger must comply with all conditions of these waste discharge requirements. A responsible party has been designated in the Order for this project and is legally bound to maintain the monitoring program and permit. Violations may result in enforcement actions, including Regional Board orders or court orders requiring corrective action or imposing civil monetary liability, or in modification or revocation of these waste discharge requirements by the Regional Board. (Wat. Code, §§ 13261, 13263, 13265, 13268, 13300, 13301, 13304, 13340, and 13350). Failure to comply with any waste discharge requirement, monitoring and reporting requirement, or other order or prohibition issued, reissued or amended by the Los Angeles Water Board or State Water Resources Control Board (State Water Board) is a violation of these waste discharge requirements and the Water Code, which can result in the imposition of civil liability. (Wat. Code, § 13350, subd. (a).)

2. General Prohibition

Neither the treatment nor the discharge of waste shall create a pollution, contamination or nuisance, as defined by Water Code section 13050. In addition, the discharge of waste classified as hazardous, as defined in California Code of Regulations, title 23, section 2521, subdivision (a) is also prohibited.

3. Availability

A copy of these waste discharge requirements shall be maintained at the discharge facility and be available at all times to operating personnel. (Wat. Code, § 13263.)

4. Change in Ownership

The discharger must notify the Executive Officer, in writing at least 30 days in advance of any proposed transfer of this Order's responsibility and coverage to a new discharger containing a specific date for the transfer of this Order's responsibility and coverage between the current discharger and the new discharger. This agreement shall include an acknowledgement that the existing discharger is liable for violations up to the transfer date and that the new discharger is liable from the transfer date forward. (Wat. Code, §§13267 and 13263.)

5. Change in Discharge

In the event of a material change in the character, location, or volume of a discharge, the discharger shall file with this Regional Board a new Report of Waste Discharge. (Wat. Code, § 13260, subd. (c).) A material change includes, but is not limited to, the following:

- (a) Addition of a major industrial waste discharge to a discharge of essentially domestic sewage, or the addition of a new process or product by an industrial facility resulting in a change in the character of the waste.
- (b) Significant change in disposal method, e.g., change from a land disposal to a direct discharge to water, or change in the method of treatment which would significantly alter the characteristics of the waste.
- (c) Significant change in the disposal area, e.g., moving the discharge to another drainage area, to a different water body, or to a disposal area significantly removed from the original area potentially causing different water quality or nuisance problems.
- (d) Increase in flow beyond that specified in the waste discharge requirements.
- (e) Increase in the area or depth to be used for solid waste disposal beyond that specified in the waste discharge requirements. (Cal. Code Regs., tit. 23, § 2210.)

6. Revision

These waste discharge requirements are subject to review and revision by the Regional Board. (Wat. Code, § 13263.)

7. Notification

Where the discharger becomes aware that it failed to submit any relevant facts in a Report of Waste Discharge or submitted incorrect information in a Report of Waste Discharge or in any report to the Regional Board, it shall promptly submit such facts or information. (Wat. Code, §§ 13260 and 13267.)

8. Vested Rights

This Order does not convey any property rights of any sort or any exclusive privileges. The requirements prescribed herein do not authorize the commission of any act causing injury to persons or property, do not protect the discharger from his liability under Federal, State or local laws, nor do they create a vested right for the discharger to continue the waste discharge. (Wat. Code, § 13263, subd. (g).)

9. Severability

Provisions of these waste discharge requirements are severable. If any provisions of these requirements are found invalid, the remainder of the requirements shall not be affected.

10. Operation and Maintenance

The discharger shall, at all times, properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) which are installed or used by the discharger to achieve compliance with conditions of this Order. Proper operation and maintenance include effective performance, adequate funding, adequate operator staffing and training, and adequate laboratory and process controls including appropriate quality assurance procedures. This provision requires the operation of backup or auxiliary facilities or similar systems only when necessary to achieve compliance with the conditions of this Order. (Wat. Code, § 13263, subd. (f).)

11. Notification Requirement

Except for a discharge which is in compliance with these waste discharge requirements, any person who, without regard to intent or negligence, causes or permits any hazardous substance or sewage to be discharged in or on any waters of the State, or discharged or deposited where it is, or probably will be, discharged in or on any waters of the State, shall, as soon as (a) that person has knowledge of the discharge, (b) notification is possible, and (c) notification can be provided without substantially impeding cleanup or other emergency measures, immediately notify the Office of Emergency Services of the discharge in accordance with the spill reporting provision of the State toxic disaster contingency plan adopted pursuant to Article 3.7 (commencing with section 8574.7) of Chapter 7 of Division 1 of Title 2 of the Government Code, and immediately notify the State Board or the appropriate Regional Board of the discharge. This provision does not require reporting of any discharge of less than a reportable quantity as provided for under subdivisions (f) and (g) of section 13271 of the Water Code unless the discharger is in violation of a prohibition in the applicable Water Quality Control plan. (Wat. Code, § 13271, subd. (a).)

12. Oil or Petroleum Releases

Except for a discharge which is in compliance with these waste discharge requirements, any person who without regard to intent or negligence, causes or permits any oil or petroleum product to be discharged in or on any waters of the State, or discharged or deposited where it is, or probably will be, discharged in or on any waters of the State, shall, as soon as (a) such person has knowledge of the discharge, (b) notification is possible, and (c) notification can be provided without substantially impeding cleanup or other emergency measures, immediately notify the Office of Emergency Services of the discharge in accordance with the spill reporting provision of the State oil spill contingency plan adopted pursuant to Article 3.5 (commencing with section 8574.1) of Chapter 7 of Division 1 of Title 2 of the Government Code. This provision does not require reporting of any discharge of less than 42 gallons unless the discharge is also required to be reported pursuant to section 311 of the Clean Water Act or the discharge is in violation of a prohibition in the applicable Water Quality Control Plan. (Wat. Code, §13272.)

13. Investigations and Inspections

The discharger shall allow the Regional Board, or an authorized representative upon the presentation of credentials and other documents as may be required by law, to:

- (a) Enter upon the discharger's premises where a regulated facility or activity is located or conducted, or where records must be kept under the conditions of this Order;
- (b) Have access to and copy, at reasonable times, any records that must be kept under the conditions of this Order;
- (c) Inspect at reasonable times any facilities, equipment (including monitoring and control equipment), practices, or operations regulated or required under this Order; and
- (d) Sample or monitor at reasonable times, for the purposes of assuring compliance with this Order, or as otherwise authorized by the California Water Code, any substances or parameters at any location. (Wat. Code, § 13267.)
- (e) Except for material determined to be confidential in accordance with applicable law, all reports prepared in accordance with the terms of this Order shall be available for public inspection at the office of the Los Angeles Water Board. Data on waste discharges, water quality, geology, and hydrogeology shall not be considered confidential.

14. Monitoring Program and Devices

The discharger shall furnish, under penalty of perjury, technical monitoring program reports; such reports shall be submitted in accordance with specifications prepared by the Executive Officer, which specifications are subject to periodic revisions as may be warranted. (Wat. Code, § 13267.)

All monitoring instruments and devices used by the discharger to fulfill the prescribed monitoring program shall be properly maintained and calibrated as necessary to ensure their continued accuracy. All flow measurement devices shall be calibrated at least once per year, or more frequently, to ensure continued accuracy of the devices. Annually, the discharger shall submit to the Executive Office a written statement, signed by a registered professional engineer, certifying that all flow measurement devices have been calibrated and will reliably achieve the accuracy required.

The analysis of any material required pursuant to Division 7 of the Water Code shall be performed by a laboratory that has accreditation or certification pursuant to Article 3 (commencing with section 100825) of Chapter 4 of Part 1 of Division 101 of the Health and Safety Code. However, this requirement does not apply to field tests, such as test for color, odor, turbidity, pH, temperature, dissolved oxygen,

conductivity, and disinfectant residual chlorine. (Wat. Code, § 13176.) Unless otherwise permitted by the Regional Board Executive Officer, all analyses shall be conducted at a laboratory certified for such analyses by the State Water Board's Division of Drinking Water. All analyses shall be required to be conducted in accordance with the latest edition of "Guidelines Establishing Test Procedures for Analysis of Pollutants" (40 C.F.R. Part 136) promulgated by the United States, Environmental Protection Agency (USEPA). (Cal. Code Regs., tit. 23, § 2230.)

The Quality Assurance-Quality Control Program must conform to the USEPA Guidelines "Laboratory Documentation Requirements for Data Validation", January 1990, USEPA Region 9) or procedures approved by the Los Angeles Regional Water Quality Control Board.

All quality assurance and quality control (QA/QC) analyses must be run on the same dates when samples were actually analyzed. All QA/QC data shall be reported, along with the sample results to which they apply, including the method, equipment, analytical detection and quantitation limits, the percent recovery, and explanation for any recovery that falls outside the QC limits, the results of equipment and method blanks, the results of spiked and surrogate samples, the frequency of quality control analysis, and the name and qualifications of the person(s) performing the analyses. Sample results shall be reported unadjusted for blank results or spike recoveries. In cases where contaminants are detected in QA/QC samples (e.g., field, trip, or lab blanks); the accompanying sample results shall be appropriately flagged.

The Discharger shall make all QA/QC data available for inspection by Regional Board staff and submit the QA/QC documentation with its respective quarterly report. Proper chain of custody procedures must be followed and a copy of that documentation shall be submitted with the quarterly report.

15. Treatment Failure

In an enforcement action, it shall not be a defense for the discharger that it would have been necessary to halt or to reduce the permitted activity in order to maintain compliance with this Order. Upon reduction, loss, or failure of the treatment facility, the discharger shall, to the extent necessary to maintain compliance with this Order, control production or all discharges, or both, until the facility is restored or an alternative method of treatment is provided. This provision applies, for example, when the primary source of power of the treatment facility fails, is reduced, or is lost. (Wat. Code, § 13263, subd. (f).)

16. Discharge to Navigable Waters

A person who discharges pollutants or proposes to discharge pollutants or proposes to discharge pollutants to the navigable waters of the United States within the jurisdiction of this state or a person who discharges dredged or fill material or proposes to discharge dredged or fill material into the navigable waters of the United States within the jurisdiction of this state shall file a report of waste discharge in

compliance with the procedures set forth in Water Code section 13260. (Wat. Code, § 13376.)

17. Endangerment to Health and Environment

The discharger shall report any noncompliance which may endanger health or the environment. Any such information shall be provided verbally to the Executive Officer within 24 hours from the time the discharger becomes aware of the circumstances. A written submission shall also be provided within five days of the time the discharger becomes aware of the circumstances. The written submission shall contain a description of the noncompliance and its cause; the period of noncompliance, including exact dates and times, and if the noncompliance has not been corrected; the anticipated time it is expected to continue and steps taken or planned to reduce, eliminate, and prevent recurrence of the noncompliance. The Executive officer, or an authorized representative, may waive the written report on a case-by-case basis if the oral report has been received within 24 hours. The following occurrence(s) must be reported to the Executive Office within 24 hours:

- (a) Any bypass from any portion of the treatment facility.
- (b) Any discharge of treated or untreated wastewater resulting from sewer line breaks, obstruction, surcharge or any other circumstances.
- (c) Any treatment plan upset which causes the effluent limitation of this Order to be exceeded. (Wat. Code, §§ 13263 and 13267.)

18. Maintenance of Records

The discharger shall retain records of all monitoring information including all calibration and maintenance records, all original strip chart recordings for continuous monitoring instrumentation, copies off all reports required by this Order, and record of all data used to complete the application for this Order. Records shall be maintained for a minimum of three years from the date of the sample, measurement, report, or application. This period may be extended during the course of any unresolved litigation regarding this discharge or when requested by the Regional Board Executive Officer.

Records of monitoring information shall include:

- (a) The date, exact place, and time of sampling or measurement;
- (b) The individual(s) who performed the sampling or measurement;
- (c) The date(s) analyses were performed;
- (d) The individual(s) who performed the analyses;
- (e) The analytical techniques or method used; and

- (f) The results of such analyses.
19. (a) All application reports or information to be submitted to the Executive Office shall be signed and certified as follows:
- (1) For a corporation – by a principal executive officer or at least the level of vice president.
 - (2) For a partnership or sole proprietorship – by a general partner or the proprietor, respectively.
 - (3) For a municipality, state, federal, or other public agency – by either a principal executive officer or ranking elected official.
- (b) A duly authorized representative of a person designated in paragraph (a) of this provision may sign documents if:
- (1) The authorization is made in writing by a person described in paragraph (a) of this provision.
 - (2) The authorization specifies either an individual or position having responsibility for the overall operation of the regulated facility or activity; and
 - (3) The written authorization is submitted to the Executive Officer.

Any person signing a document under this Section shall make the following certification:

“I certify under penalty of law that I have personally examined and am familiar with the information submitted in this document and all attachments and that, based on my inquiry of those individuals immediately responsible for obtaining the information, I believe that the information is true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment. [Wat. Code §§ 13263, 13267, and 13268.]”

20. **Operator Certification**

Operators of municipal wastewater treatment plants and privately owned facilities regulated by the Public Utilities Commission, used in the treatment or reclamation of sewage and industrial waste shall possess a certificate of appropriate grade in accordance with California Code of Regulations, title 23, section 3680. In lieu of a properly certified wastewater treatment plant operator, the State Water Board may approve use of a water treatment plant operator of appropriate grade certified by the State Department of Public Health where reclamation is involved. (Cal Code Regs., tit. 23, § 3670.1, subd. (b).)

**ADDITIONAL PROVISIONS APPLICABLE TO PUBLICLY OWNED TREATMENT
WORKS' ADEQUATE CAPACITY**

21. Whenever a regional board finds that a publicly owned wastewater treatment plant will reach capacity within four years, the board shall notify the discharger. Such notification shall inform the discharger that the regional board will consider adopting a time schedule order pursuant to section 13300 of the Water Code or other enforcement order unless the discharger can demonstrate that adequate steps are being taken to address the capacity problem. The notification shall require the discharger to submit a technical report to the regional board within 120 days showing how flow volumes will be prevented from exceeding existing capacity or how capacity will be increased. A copy of such notification shall be sent to appropriate local elected officials, local permitting agencies and the press. The time for filing the required technical report may be extended by the regional board. An extension of 30 days may be granted by the executive officer. Longer extensions may be granted by the regional board itself. (Cal. Code Regs., tit. 23, § 2232.)



Los Angeles Regional Water Quality Control Board

BOARD ORDER TRANSFER REQUEST FORM

Board Order No. _____ CI No. _____

Facility Address _____

I requested the transfer of the existing waste discharge requirements (WDRs) on _____ (effective date), contained in the above-referenced Board Order in accordance with the following:

TRANSFER FROM:

TRANSFER TO:

Former Facility Name

New Facility Name

Former Property Owner

New Property Owner

Former Operator

New Operator

I understand that I am responsible for compliance with the Board Order and will be billed an annual fee for the waste discharge from this facility. I certify that:

1. I have reviewed the Report of Waste Discharge and the Board Order;
2. The facility construction and discharges from the site have not substantially changed; and
3. I will notify the Board of any material change in this facility, any change in the amount, type of manner of waste discharge or any future change in the facility owner or operator.

Signature (New Owner/Authorized Representative)

Company Name, if appropriate

Print Name (New Owner/Authorized Representative)

Telephone No.

Date

Title

Email

Mailing Address

Facility Contact Person

Telephone No.

Email

Facility Contact Mailing Address

State Water Resources Control Board

Division of Drinking Water

November 19, 2024

(Sent via email: Jim.Kang@waterboards.ca.gov)

Jim Kang
Senior Water Resource Control Engineer
Regional Water Quality Control Board
Los Angeles Region
320 West Fourth Street, Suite 200
Los Angeles, CA 90013

Conditional Acceptance of the Title 22 Engineering Report for the Top O' Topanga Community Association's Wastewater Treatment Plant (1990033-704)

Dear Mr. Kang,

This letter transmits State Water Resources Control Board, Division of Drinking Water (DDW) conditional acceptance for the Title 22 Engineering report (Report) by the Ventura Regional Sanitation District for the Top O' Topanga (TOT) Wastewater Treatment Plant (WWTP). The report was prepared by MKN & Associates and describes the existing wastewater treatment plant and its operations.

Project Description

The Report describes the current operation of the WWTP, which is designed to produce disinfected secondary-23 recycled water. The WWTP is described as consisting of a comminutor, two bar screens operating in parallel, one anoxic chamber, two aerobic basins and clarifiers operating in parallel, one chlorine contact chamber, and an irrigation pond. The WWTP is currently capable of treating 40,000 gallons per day. The Engineering Report describes the existing WWTP and its use in multiple restricted access fenced spray fields for the irrigation of ornamental vegetation.

Recommended Permit Provisions

DDW recommends that the Los Angeles Regional Water Quality Control Board (RWQCB) include the following conditions in the RWQCB permit for the Project:

General Requirements

1. TOT must comply with all applicable requirements set forth in Title 22 of the California Code of Regulations for the production, distribution, and use of recycled water.
2. Cross connection control must comply with the State Water Resources Control Board's Cross Connection Control Policy Handbook
3. The production, distribution, and use of disinfected secondary-23 recycled water must be as described in the Engineering Report.
4. Prior to implementing any change to the Project that would require an update to the Engineering Report (e.g., modification to treatment train or increase in flow rate beyond that described in the Engineering Report), TOT must consult with DDW and, if directed by DDW, submit an updated Engineering Report to DDW for review and approval.
5. Per CCR, Title 22, Articles 8 and 10 of the Water Recycling Criteria, BDW must always maintain the reliability features and contingency measures for the WTS processes and ensure non-compliant RW is not being delivered for RW use.

Treatment and Monitoring Requirements

6. The chlorine disinfection system must be subject to the following:
 - a. TOT must provide continuous monitoring of total chlorine residual at the chlorine contact chamber (CCC) effluent and flow rate in the CCC.
7. Per Title 22, Section 60301.230(b), the median concentration of total coliform bacteria measured in the disinfected effluent must meet the following requirements ("MPN" = most probable number of total coliform bacteria):
 - a. MPN not to exceed 23 per 100 milliliters utilizing the bacteriological results of the last seven days for which analyses have been completed; and
 - b. MPN not to exceed 240 per 100 milliliters in more than one sample in any 30-day period.
8. No changes, additions, or modifications can be made to the disinfection process unless approval is obtained from DDW
9. TOT must not bypass any untreated or partially treated wastewater to the point of use. Excess flows and/or off-spec process flows temporarily diverted to the unused treatment train must be disposed of.

Use Area Requirements

10. The application and use of secondary-23 recycled water must be in accordance with the CCR, Title 22, Recycled Water Criteria. BDW must ensure the RW uses, and practices adhere to the following:

- a. An engineering report must be submitted to DDW and RWQCB for review and approval of any future use of RW or expansion of existing irrigation areas beyond those described in the approved Title 22 Engineering Report(s).
- b. Plans for future uses of RW or expanded irrigation areas, when available must be submitted to DDW and RWQCB for review and approval.
- c. Per CCR, Title 22, Section 60310(c), no irrigation with, or impoundment of, disinfected secondary-23 recycled water shall take place within 100 feet of any domestic water supply well.
- d. Per CCR, Title 22, Section 60310(e), the use of recycled water must comply with the following:
 - i. Any RW irrigation runoff must be confined to the recycled water use area unless the runoff does not pose a public health threat and is authorized by the regulatory agency.
 - ii. Spray, mist, or runoff must not enter dwellings, designated outdoor eating areas, or food handling facilities.
- e. Per CCR, Title 22, Section 60310(g), all recycled water use areas must be posted with signs that are visible to the public, in a size no less than 4 inches high by 8 inches wide, that states the following: "RECYCLED WATER - DO NOT DRINK." Each sign must display an international symbol like that shown in figure 60310-A, of CCR, Title 22, Section 60310. DDW may accept alternative signage and wording, or an educational program, provided the applicant demonstrates to DDW that the alternative approach will assure an equivalent degree of public notification. These signs need to be placed in conspicuous places including at each entrance to the RW irrigated area.
- f. Per CCR, Title 22, Section 60310(h), no physical connection can be made or allowed to exist between the recycled water system and any separate system conveying potable water. Supplementing RW with potable water must always be through an approved air gap separation.
- g. The installation of RW pipeline(s) at the use site area(s) must be in accordance with the separation criteria pursuant to the California Waterworks Standards Chapter 16, Article 3, Section 64572.
- h. Pipeline(s), control valves and other appurtenances located at the RW use areas must have identification markings and color coding. Purple color coding must be used, such as purple identification tape, or a purple polyethylene vinyl wrap color Pantone 522C to tag the RW pipelines and appurtenances.

- i. Per CCR, Title 22, Section 60310(i), the recycled water system in irrigated areas must not include hose bibs. Only quick couplers that differ from those used on potable water system can be used.
- j. The installation of recycled water pipeline(s) at use area(s) must be in accordance with the separation criteria pursuant to Section 64572, Article 3, Chapter 16, California Waterworks Standards.
- k. Pipeline(s), control valves and other appurtenances located at the recycled water use areas must have identification markings and color coding. Purple color coded must be used, such as purple identification tape, or a purple polyethylene vinyl wrap color Pantone 522C to tag the recycled water pipelines and appurtenances.

Operations, Maintenance, and Reporting

- 11. BDW must maintain a current operations plan for the WTS. The operations plan shall be submitted to DDW and CVRWQCB prior to start-up and subsequently upon any changes or modifications to the treatment facilities and/or operations
- 12. Chlorine analyzers and flow meters must be installed and properly calibrated based on manufacturer recommendations to ensure proper disinfection at all times. Chlorine analyzers must be inspected and checked against a reference unit routinely to determine accuracy. If a continuous analyzer reading varies from the reference unit reading, the continuous analyzer must be recalibrated by a procedure recommended by the manufacturer. Flow meters must be inspected and checked against other flow determination methods routinely to determine accuracy.
- 13. TOT must always provide enough qualified personnel to operate WWTP effectively to achieve the required level of treatment. Qualified personnel must be those meeting requirements to Division 7, Chapter 9 (commencing with Section 13625) of the California Water Code.
- 14. Per Title 22, Section 60327, a preventive maintenance program must be maintained to ensure all equipment is kept in reliable operating condition.
- 15. Per Title 22, Section 60329(a), operating records must be maintained at TOT or a central depository. The operating records must include: all analyses specified in California's Water Recycling Criteria; records of operational problems, plant and equipment breakdowns, and diversions to emergency storage or disposal; and all corrective or preventive action(s) taken.
- 16. Per Title 22, Section 60329(b), process or equipment failures triggering an alarm must be recorded and maintained as a separate record file. The recorded information must include the time and cause of failure and corrective action taken.

17. Per Title 22, Section 60329(d), any discharge of untreated or partially treated wastewater to the use area, and the cessation of same, must be reported immediately by telephone to the RWQCB, DDW, and the local health officer.

If you have any questions regarding this letter, please contact Christopher Barber at (559) 437-1581 or at Christopher.barber@waterboards.ca.gov or me at (818) 551-2046 or via email at Ginachi.Amah@waterboards.ca.gov.

Sincerely,

Ginachi Amah P.E., D. Env
Recycled Water Unit Supervisor
Division of Drinking Water
State Water Resources Control Board
500 North Central Ave., Suite 500
Glendale, CA 91203

cc: Ginachi Amah, DDW (via email)
Terrance Kim, DDW (via email)
Woonhoe Kim, Los Angeles Regional Water Quality Control Board (via email)
Ric Vardel, CPO, IPC, Inc., rvarvel@ipcengineering.net
Ken Solomon, President, Top O' Topanga (via email: topangaguru@gmail.com.)

bcc: RWU Files